

SOFTWARE DEVELOPMENT AND LICENSING AGREEMENT

Parties

This Software Development and Licensing Agreement ("Agreement") is entered into between Provider Technologies Pvt. Ltd. ("Provider") and Horizon Retail Analytics Ltd. ("Client"). Both may be referred to individually as a "Party" and collectively as the "Parties".

1. Definitions

Software means the proprietary software platform developed under this Agreement including source code, documentation, and updates. Deliverables means materials or reports delivered to the Client as part of the Services. Confidential Information includes proprietary technical, financial, or business information disclosed between the Parties.

2. Scope of Services

The Provider agrees to design, develop, and deploy a software solution supporting the Client's retail analytics operations. Services include architecture design, analytics module development, integration, testing, deployment, and documentation.

3. Project Timeline

The project shall commence on the Effective Date and continue for twelve months unless terminated earlier. Key phases include system architecture, core development, integration testing, and deployment with training.

4. Payment Terms

The Client agrees to pay the Provider according to milestone completion. Payments shall be made within thirty days of invoice receipt. Late payments may incur interest as permitted by law.

5. Client Responsibilities

The Client shall provide necessary data, documentation, and access required for project completion and ensure timely approvals throughout the project lifecycle.

6. Intellectual Property Rights

All intellectual property rights in the Software remain the property of the Provider unless otherwise agreed. The Client receives a non-exclusive license to use the software for internal business purposes.

7. Confidentiality

Both Parties agree to maintain confidentiality of proprietary information and shall not disclose such information to third parties without consent unless required by law.

8. Data Protection

The Provider shall implement reasonable security measures to protect Client data and comply with applicable data protection regulations.

9. Warranties

The Provider warrants that services will be performed professionally and the software will substantially conform to its documentation for a limited warranty period after deployment.

10. Limitation of Liability

Neither Party shall be liable for indirect or consequential damages. Total liability shall not exceed the fees paid under this Agreement.

11. Indemnification

Each Party agrees to indemnify the other against claims resulting from violations of intellectual property rights, misuse of the software, or legal violations.

12. Termination

Either Party may terminate the Agreement with written notice or immediately in the case of material breach or insolvency.

13. Force Majeure

Neither Party shall be liable for delays caused by events beyond their reasonable control including natural disasters, war, or government restrictions.

14. Governing Law

This Agreement shall be governed by the laws of India and disputes shall be resolved through arbitration in Bangalore under the Arbitration and Conciliation Act.

15. Entire Agreement

This document represents the entire agreement between the Parties and supersedes any prior agreements or negotiations relating to the subject matter.

Signatures

Provider Technologies Pvt. Ltd.

Authorized Signatory: _____

Horizon Retail Analytics Ltd.

Authorized Signatory: _____